

SYNTHETIC TRAINING RECORD — NOT FILED — ALL FACTS AND IDENTIFIERS
ARE FICTIONAL

EXECUTIVE OFFICE FOR IMMIGRATION REVIEW — IMMIGRATION COURT
Proceeding SYN-EOIR-24-RM-0113

A.R.M. application for CAT protection

Filing cover and requested determination

A.R.M., identified only by initials, applies for protection from removal to the Republic of Kalyra under the Convention Against Torture implementing regulations. Removability has been conceded. This application asks whether the evidence establishes that A.R.M. is more likely than not to experience qualifying torture if returned.

The application identifies three interacting sources of risk: Directorate Unit Four officers, Harbor League participants who obtained and used official information, and central registry personnel who flag returned procurement witnesses. A.R.M. contends that the sources must be considered together and that officials' knowledge and failures to intervene satisfy the asserted acquiescence theory.

Filed April 12, 2024 with an indexed exhibit delivery. This cover is Agency Exhibit P-1. It incorporates no event after the filing date.

Protection requested and issues preserved

A.R.M. asks the immigration judge to prohibit removal to Kalyra through CAT withholding or, if the governing mandatory-denial provisions require it, deferral. The record contains no concession that a mandatory denial applies; the alternative request preserves the complete CAT remedy.

A.R.M. does not ask the judge to decide an asylum protected-ground claim, discretionary asylum, cancellation, or adjustment. Evidence of procurement disclosure explains motive and future identification; it is not offered to convert the case into a different protection theory.

The application preserves these issues: past intentional severe harm in official custody; likely future identification; combined risk from public and nominally private actors; official knowledge or willful blindness; breach of a duty to intervene; the practical limits of relocation; and the weight of corroborating declarations and institutional records.

No numerical probability is assigned to a single actor. A.R.M. asks for an evidence-based overall assessment rather than arithmetic that double-counts overlapping events.

Indexed chronology of material events

- April 18, 2023: A.R.M. copies ledger entries showing split Harbor League invoices.
- May 2: A.R.M. reports the pattern to municipal compliance officer Nadia Pel.
- May 19–21: Unit Four officers detain and question A.R.M. about the copies and Pel.
- June 7: the Office of Civic Integrity accepts complaint OCI - 23 - 441 under initial route IC - 2.
- June 9: the intake is linked to referral CIV - 23 - 184 through employment code ARM - RX - 14.
- June 10: the destination changes to RC - 4, Unit Four's regional command; on June 30 the status remains “regional response pending.”
- July 11: Harbor League messengers threaten A.R.M. and S.M. outside the family residence.
- August 4: A.R.M. departs Kalyra.
- August 8: A.R.M. is admitted to the United States as a temporary visitor.
- January 9, 2024: the notice issues.
- February 6: A.R.M. concedes removability and elects a CAT-only merits hearing.
- April 12: this application and contemporaneous supporting materials are lodged.

The chronology stops at filing. Any later event must be established, if relevant and admissible, through a separate dated source rather than backfilled into this application.

Past detention and asserted severe harm

A.R.M. states that uniformed Unit Four officers used a municipal vehicle to take A.R.M. from the records annex on May 19, 2023. The officers held A.R.M. for two nights in a service building, repeatedly demanded the copied invoice sheets, and sought the identity of the person who received them.

The application alleges intentional blows, stress positioning, sleep interruption, and threats against S.M. to punish disclosure and compel information. A.R.M. describes a swollen right ankle, limited movement in the left shoulder, rib pain, and nightmares after release. The May 21 clinic visit at 14:20 is recorded separately. The separate declaration supplies the first-person sequence; the sibling declaration describes observations after release; clinical evidence states its methodology and limits.

DHS disputes whether the alleged acts occurred and whether they meet the regulatory definition. The application does not treat the allegations as established merely because they are written. It identifies the testimony and corroboration through which A.R.M. will carry the burden.

Directorate Unit Four future-risk theory

A.R.M. contends that Unit Four retains the motive and means to locate A.R.M. on return. The officers demanded the procurement copies, named Pel during questioning, and warned that a second complaint would be treated as disloyalty. The unit's regional command later received the civic- integrity complaint bearing A.R.M.'s initials and employment code.

The future-risk theory does not rest only on the officers who performed the detention. Unit Four's intake ledger, regional routing, and access to arrival notifications allegedly allow other unit members to act on the same file. A.R.M. will offer evidence about how returned witnesses are flagged and transferred for questioning.

The application acknowledges that personnel may change and that no witness can identify every current officer. It asks the judge to assess institutional continuity, the prior targeting, and the other risk sources together rather than require proof of one named future torturer.

Harbor League future-risk theory

Harbor League is a network of contractors, not a government ministry. A.R.M. alleges that its participants learned which procurement pages were copied, approached S.M. by name, and referred to a complaint that had been submitted through an official channel. Those details support an inference of official access or information sharing.

On July 11, two messengers allegedly told A.R.M. that leaving Orin Vale would not matter because the “arrival desk” would see the procurement flag. S.M. recorded the vehicle's municipal vendor permit in a contemporaneous family log. Later messages used a ledger-only project nickname not published outside the office.

A.R.M. does not claim that private threats alone necessarily satisfy CAT. The asserted chain is that Harbor League participants can identify and harm A.R.M. with officials' awareness, assistance, or deliberate nonintervention. The country and institutional evidence will be offered to test that chain rather than assume it.

Central registry and return-identification theory

The application describes a central-arrival registry used to confirm identity and route persons with open municipal-security flags. A.R.M. does not allege that every returnee is detained. The claimed risk arises from the specific Unit Four entry created after the procurement complaint.

Pel's records memorandum states that a Unit Four supervisor requested A.R.M.'s employment code and marked the personnel index "regional inquiry pending." S.M.'s message log records a later warning that the inquiry would appear at the arrival desk. Expert evidence may address institutional process without claiming access to A.R.M.'s live file.

The theory overlaps with Unit Four and Harbor League risk. Registry identification is a pathway, not a fourth independent torturer. The application therefore cautions against adding probabilities as though every pathway were statistically independent. It asks for a qualitative aggregate assessment grounded in the common identifying event.

Public-official acquiescence theory

A.R.M. alleges direct official conduct during the May detention and acquiescence in foreseeable Harbor League harm. After release, A.R.M. submitted complaint OCI - 23 - 441 to the Office of Civic Integrity on June 7. The receipt initially shows IC - 2, independent conduct review. A June 9 audit links it to CIV - 23 - 184 through ARM - RX - 14; on June 10 the destination changes to RC - 4, Unit Four regional command. The June 30 status remains “regional response pending,” and no independent interviewer contacted A.R.M., S.M., or Pel.

Pel states that supervisors were warned this routing returned allegations to implicated officers. The office retained the protocol. When S.M. later reported the Harbor League threat, a desk officer referred to the same regional inquiry and declined to open a separate protection file.

The application acknowledges formal Kalyrian prohibitions on torture and an official complaint office. It contends those formal structures must be weighed against how this complaint was actually handled. Awareness, deliberate avoidance of confirming facts, and failure to intervene are the factual focus.

Aggregate-risk method requested

A.R.M. asks the judge first to identify each supported pathway to torture, then to identify overlap among the pathways, and finally to decide whether all relevant evidence makes torture more likely than not. The application rejects two errors: requiring one feared actor alone to cross the threshold, and mechanically adding overlapping percentages that count the same capture twice.

The pathways are connected. Registry identification may deliver A.R.M. to Unit Four; Harbor League may supply information or personnel; Unit Four's official authority may prevent protective action. Past detention affects both future probability and the inference about official purpose.

DHS may argue that formal law, time away, or relocation reduces risk. A.R.M. asks that those facts be placed in the same combined assessment. The application does not prescribe a result and does not assign invented confidence scores to evidence the judge has not heard.

Supporting-record index at filing

The April 12 delivery identifies:

- P-1: this CAT application and chronology;
- P-2: S.M.'s sibling declaration and communication log;
- P-3: family corroboration and employment-authentication packet;
- P-4: four selected Kalyrian-language message exports with authenticated searchable transcriptions;
- P-5: complaint receipt OCI - 23 - 441 and the June 9, June 10, and June 30 routing extract;
- P-6: certified translations, clinic notation, and procurement-register source text, physically combined with P-4 and P-5 in one ten-page controlled packet; and
- P-7: A.R.M.'s sworn declaration.

The clerk receipt lists P-7 as eighteen pages and “lodged, merits ruling required.” Lodging records delivery and page count but does not decide admission, credibility, or weight.

Evidentiary limits and disputed propositions

A.R.M. offers personal declarations for firsthand observations, business-like logs for their recorded events, and expert material only within the author's stated field. A message repeating a threat proves what the recipient received and may support state of mind; it does not automatically prove the speaker's institutional access.

The application distinguishes allegation, authentication, admission, credibility, and weight. The exhibit receipt can prove when P-7 was lodged and, after a merits ruling, whether it was admitted. Neither filing nor admission would compel the judge to credit every sentence.

A.R.M. bears the CAT burden and does not ask DHS to disprove every feared event. DHS retains its objections and may offer contrary country or institutional evidence. The judge must identify the material evidence actually considered and explain the resulting agency decision.

Declaration, service, and application certification

A.R.M. declares through a Kalyrian interpreter that the application summary is accurate to the best of A.R.M.'s knowledge and that the separate sworn declaration supplies the full personal account. A.R.M. understands that knowingly false material could affect the proceeding.

Counsel certifies electronic delivery to institutional DHS actor DHS-TC-7 on April 12, 2024. The delivery manifest lists seven petitioner exhibits and their page counts. Counsel also certifies that the application contains no event occurring after April 12, 2024.

The clerk records this application as a twelve-page P-1 filing. Exhibit numbering and page count identify the delivered material; admission remains for the merits hearing.

The initials-only privacy protocol applies to the signature, counsel code, receipt, and service channel.